READ THIS FIRST — COMPLIANCE & ACTION LIST

What this pack is. A complete set of professionally drafted microlending documents for QuickServe Cashloan (Quickserve Financial Services CC), written in plain English and built around Namibian law — chiefly the **Microlending Act 7 of 2018** and NAMFISA's rules for registered microlenders.

What this pack is not. It is **not a legal opinion**, and it is **not ready to hand to a borrower as it stands.** It is a strong first draft that a Namibian attorney must review and sign off before first use. This page tells you, and them, exactly what to check and why.

One honest limitation you must know about. The research behind these documents was done in an environment where the primary legal sources — the Act itself on NamibLII and the Legal Assistance Centre site, and NAMFISA's own website — were **blocked and could not be opened first-hand.** Every rule below comes from NAMFISA's consumer-education material and reputable secondary reporting, not from a direct reading of the gazetted text. That is why section numbers and exact figures are flagged for confirmation rather than stated as settled. Treat this page as a well-researched checklist for your lawyer, not as the final word.

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1. STOP-AND-CHECK ITEMS — DO NOT ISSUE ANY DOCUMENT UNTIL THESE ARE RESOLVED

1.1 **Are you registered with NAMFISA?** Operating as a microlender without registration is itself the offence — a fine of up to N$500,000 and/or up to five years' imprisonment — and no wording in any document cures it. If Quickserve Financial Services CC is not yet a NAMFISA-registered microlender, that comes first, before anything in this pack is used.

1.2 **The 30% rate and the service fee cannot both stand as they are.** In Namibia the 30% ceiling on a short-term microloan is a **once-off** cap on **total finance charges** for the whole loan — not a monthly rate. Critically, "finance charges" is defined to include **everything the borrower pays above the cash advanced**, so a **service fee counts inside the 30%, not on top of it.**

- A N$1,000 loan at 30% interest (N$300) **plus** a N$50 service fee = N$350 = **35% — over the cap, and the contract itself is the offence** (the law forbids even *stipulating* an over-cap charge, s 22(1)).
- **Decision you must make now:** either the interest rate and the service fee **together** stay at or below 30% of principal, or you drop the service fee. The documents are drafted around a single "Total finance charges ≤ 30%" line for exactly this reason. Set your numbers so row E of the loan cost table never exceeds 30%.

1.3 **Rollovers / extensions — your single highest legal risk.** Your ledger app currently charges **another full interest cycle** each time a loan is extended. On the same loan, that pushes total finance charges past the 30% ceiling, which is very likely **unlawful**. This pack takes the conservative position — an extension may not push cumulative charges past 30% of principal — but whether *any* further charge is lawful on a rollover, and whether an extension must instead be written up as a **brand-new loan with a fresh affordability check**, is the first question for your attorney and for NAMFISA. The lawful mechanism for an unpaid loan is more likely **default interest** (see 2.1), not a fresh interest cycle.

1.4 ~~**Fix the flyer's wording (done in this repo, confirm you are happy with it).**~~ A bare "30% interest" with no period invites the unlawful reading "30% per month". The flyer has been updated to "30% once-off, not per month" with a disclosure ribbon. Keep it that way.

2. CONFIRM WITH YOUR ATTORNEY AND NAMFISA BEFORE PRINTING

2.1 **The default-interest figure.** The documents leave the default-interest rate as a blank drafted as "not more than 5%, for not more than three months". That 5%/3-month cap comes from NAMFISA consumer material, **not** from a confirmed reading of the ministerial determination. Confirm the current figure before you fill the blank.

2.2 **Every statute section number.** Because the primary sources could not be opened, section references (e.g. to the Microlending Act, the Usury Act 73 of 1968, the Magistrates' Court Act 32 of 1944, the Prescription Act 68 of 1969, the Credit Bureau Regulations) are drafted conservatively but **must be checked against the gazetted text** before the first print run.

2.3 **The cooling-off period.** Drafted as **three business days**. Confirm the exact count and whether it is business or calendar days.

2.4 **Submit the loan agreement to NAMFISA.** NAMFISA reviews and approves a microlender's loan-agreement form as part of registration, and publishes a standard form. Compare this agreement against theirs and submit it.

2.5 **The revenue stamp.** The Stamp Duties Act was amended in 2024. The agreement leaves a revenue-stamp box on the printed original but deliberately **prints no amount** — confirm the current duty with NAMRA.

2.6 **Data protection.** There is no Data Protection Act in force in Namibia, so the privacy notice is grounded in **contractual consent** and the statutory credit-check duty, not in a data-protection statute. Do not add a citation to a Namibian data-protection law.

2.7 **You must actually be subscribed to a registered credit bureau** and must actually complete and file a **written affordability assessment** for every loan. Several documents state that these were done; they must genuinely be done, not just recited.

3. CHANGES YOUR LEDGER APP NEEDS TO MATCH THIS PAPERWORK

The documents promise things the current app does not yet enforce. Flag these to whoever maintains the app:

3.1 **Cap validation.** Block or warn on save when `(interest + serviceFee) / principal` exceeds 0.30.

3.2 **Cumulative-charge ceiling.** Never let total finance charges on one loan exceed 30% of its principal, however many extensions occur.

3.3 **Early settlement should be pro rata.** The agreement gives the borrower a pro-rata settlement figure if they pay early; the app's flat, once-off interest does not reduce for early payment. Reconcile the two, or the paperwork over-promises.

3.4 **In duplum.** Interest and charges must stop once accrued unpaid interest equals the outstanding capital. The app should enforce this hard stop.

3.5 Extension mechanism. Rework rollovers away from "another full cycle" toward default interest (capped) or a documented new loan — see 1.3.

4. CROSS-DOCUMENT ITEMS TO RECONCILE

An independent three-way review (a consumer-advocate reading, an adversarial-attorney reading, and an operations reading against the app) flagged these to tidy up before use. None is a legal error on its own; each is an internal-consistency point:

- **The extension charge** is described one way in the pre-agreement quotation and another in the agreement — make them say the same thing once you have settled 1.3.
- **The payment-appropriation order** (which debt a payment clears first) is stated at different levels of detail across the agreement, the receipt, the statement and the arrears letter. Pick one order and use identical wording everywhere.
- **Annexure C** (an instalment schedule) is referred to but not included — add it or remove the reference.
- **NAMFISA's contact details** appear with slight differences between documents — set them once and reuse.
- Replace every remaining **[SQUARE-BRACKET]** placeholder before printing; never present a document for signature with a bracket still showing.

5. FILL-IN CHECKLIST — WHAT ONLY YOU CAN SUPPLY

Already filled in for you across the pack: **Quickserve Financial Services CC**, CC registration **CC/2026/01904**, and the phone/WhatsApp number **+264 81 264 6222**.

Still to fill in (left as highlighted blanks on purpose):

- NAMFISA microlender registration number and its expiry date
- Physical street address, postal address, and email
- Principal officer's name
- Your confirmed interest rate and service fee (subject to the 30% cap in 1.2)
- The default-interest rate (subject to 2.1)
- Your record-retention period and maximum-extensions policy

6. THE DOCUMENTS IN THIS PACK

Before the loan — Loan Application Form · Pre-Agreement Statement & Quotation · Affordability Assessment Worksheet.

The loan — Microloan Agreement · Schedule of Fees & Charges (Annexure A).

While the loan runs — Payment Receipt · Statement of Account · Early Settlement Quotation · Loan Extension (Rollover) Addendum.

When it is settled — Paid-Up Letter / Settlement Confirmation.

If it is not paid — First Reminder · Final Letter of Demand · Acknowledgement of Debt & Payment Arrangement · Write-Off / Account Closure Notice.

Governance — Consent & Privacy Notice · Client Rights & Complaints Charter · Debit Order / Payment Authority Mandate.

Each document is supplied as an editable Word file (for you to fill in and adjust) and as a print-ready PDF (what the client receives).

Prepared as a drafting aid for Quickserve Financial Services CC. Not legal advice. Have a Namibian legal practitioner review the full pack before use.